

26IWUD00641 26IWUD00641

County: los-angeles

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The court SUSTAINS the demurrer without leave to amend. The Plaintiff served a 60-day notice on the Defendants stating the Plaintiff intended to terminate the tenancy to perform a substantial remodel of the property (See Civ. Code, § 1946.2, subd. (b)(2)(D).) Among other things, the Defendants argue the 60-day notice fails to state "the approximate expected duration of the substantial remodel" as required under Civil Code section 1946.2, subdivision (b)(2)(D)(iv)(III). The 60-day notice states the "[a]pproximate duration of the substantial remodel" is "[a]t least 30 days." The court finds this statement does not comply with the requirement to identify "the approximate expected duration of the substantial remodel" under Civil Code section 1946.2, subdivision (b)(2)(D)(iv)(III).

Civil Code section 1946.2, subdivision (b)(2)(D)(ii), defines a substantial remodel as one "that requires the tenant to vacate the residential real property for at least 30 consecutive days." If a statement that essentially restated the definition of a substantial remodel complied with subdivision (b)(2)(D)(iv)(III), then that subdivision would be surplusage. (See *Weber v. Superior Court* (2024) 101 Cal.App.5th 342, 352 ["the Legislature does not engage in idle acts, and no part of its enactments should be rendered surplusage if a construction is available that avoids doing so"].) Based on the context of subdivision (b)(2)(D)(iv)(III), including subdivisions (b)(2)(D)(iv)(II) and (b)(2)(D)(iv)(IV), the Legislature intended for landlords to provide a more precise expected duration of the project so that tenants can determine how long they are likely to need alternative accommodations in the event they wish to exercise their right to re-rent or reoccupy the unit when and if the remodel is not commenced or completed (subdivision (b)(2)(D)(iv)(II)) or following its completion (subdivision (b)(2)(D)(iv)(IV)). (See *Weber*, at p. 352 ["statutory language is to be understood in context, with the whole of a statute considered when attempting to construe each part"].)

A defective termination notice will not support an unlawful detainer action. (Cf. *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697 ["A valid three-day pay rent or quit notice is a prerequisite to an unlawful detainer action. [Citations.] Because of the summary nature of an unlawful detainer action, a notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements."].) Because the 60-day notice served on the Defendants is defective, and the court dismisses the action with prejudice.